

25STCV27563 25STCV27563

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-07-16
Source URL:
https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C506%2C07%2F16%2F2026
Source SHA-256: 1510b09481bf87db2cbabbdb06f5911dd613049a0435cf944956b92cbdde186c

Case Number: 25STCV27563 Hearing Date: July 16, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

KARINA TORRES,

Plaintiff,

vs.

BBDI LLC dba BLACK BEAR DINER, et al.,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 25STCV27563

[TENTATIVE]

ORDER GRANTING MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES,
AND DENYING MOTIONS TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF
DOCUMENTS, AND SPECIAL INTERROGATORIES

Dept. 506

8:30 a.m.

July 16,
2026

On June 27, 2025, Plaintiff

Karina Torres filed this employment law action against Defendants BBDI LLC dba
Black Bear Diner, Bear Track Holdings LLC dba Black Bear Diner, Isaid R.

Arteaga, and Does 1 to 50. The Complaint

alleges (1) sexual battery, (2) sexual harassment, (3) harassment based on
association with member of racial group, (4) gender discrimination, (5)
retaliation, (6) failure to investigate or prevent harassment and retaliation,
(7) battery, (8) intentional infliction of emotional distress, (9) negligent
infliction of emotional distress, and (10) wrongful termination.

On

June 3, 2026, Defendants BBDI LLC, Bear Track Holdings LLC, and Arteaga filed motions to compel Plaintiff to serve further responses to Defendants' Form Interrogatories – General (Set One) ("FROGs"), Request for Production of Documents (Set One) ("RFPs"), and Special Interrogatories (Set One) ("SROGs").

LEGAL STANDARD

A

party may move to compel a further response to a discovery demand if the demanding party deems that the statement of compliance with the demand is incomplete; the representation of inability to comply is inadequate, incomplete, or evasive; or an objection in the response is without merit or too general. (Code Civ. Proc., §§ 2030.300, subd. (a) [interrogatories], 2031.310, subd. (a) [documents and inspections], 2033.290, subd. (a) [admissions].)

"Except

as provided in subdivision (j) [concerning electronically stored information], the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

(Code Civ. Proc., § 2031.310, subd. (h).)

DISCUSSION

A.

Form Interrogatories

Defendants

move to compel Plaintiff to serve further responses to FROG Nos. 202.2, 203.1, 210.4, 8.4, and 10.1.

The

request to compel further responses to FROG Nos. 202.2, 203.1, and 210.4 is

GRANTED. Defendants state that Plaintiff

agreed to serve supplemental responses to those FROGs but has not yet done so. Therefore, the Court grants the request to compel further responses to Nos. 202.2, 203.1, and 210.4.

FROG No. 8.4 asked Plaintiff: "State your monthly income

at the time of the INCIDENT and how the amount was calculated.”

The Court finds Plaintiff’s response to that FROG was insufficient. Plaintiff responded that, without waiving her objections, her “average gross monthly income was approximately \$999.48 which was calculated by averaging her gross monthly income from March 7, 2024 to October 2, 2024.” (FROG Motion Joint Discovery Dispute Statement, p. 4:5-7.) However, Defendants argue (and Plaintiff has not denied) that the Complaint alleges events spanning from December 2023 to December 2024. Plaintiff limited her response to the time period between March 7, 2024, to October 2, 2024, without explanation.

Therefore, the request to compel further response to FROG No. 8.4 is GRANTED.

FROG No. 10.1 asked Plaintiff: “At any time before the INCIDENT did you have complaints or injuries that involved the same part of your body claimed to have been injured in the INCIDENT? If so, for each state: [¶] (a) a description of the complaint or injury; [¶] (b) the dates it began and ended; and [¶] (c) the name, ADDRESS, and telephone number of each HEALTH CARE PROVIDER whom you consulted or who examined or treated you.”

The Court agrees that Plaintiff’s response was insufficient. Plaintiff responded, without waiving her objections, as follows: “Yes. Responding party has experienced the following due to Defendants’ harassing and discriminatory conduct in 2015: humiliation, embarrassment, anxiety, fatigue, depression, loss of self esteem, mental anguish, disbelief, hurt, stress, anger, fear, isolation, rejection, grief, disappointment, sadness, insomnia, emotional blocking, lethargy, lack of energy, tiredness, decline in socialization, loss of interest in daily activities, loss of ability to tend to family needs, concentration problems, and memory decline.” However, it is unclear from the Joint Discovery Dispute Statement whether Plaintiff served responses to subparts (b) and (c) of the interrogatory. Plaintiff was required to respond to those questions if she did not do so. As for subpart (a), Plaintiff’s response is insufficient as she fails to describe her complaints or injuries of the same body parts she alleges Defendants injured; she only includes a number of emotions (e.g., humiliation, embarrassment) without providing the information requested in the interrogatory.

Therefore, the request to compel further responses to FROG No. 10.1 is GRANTED.

Defendants

seek sanctions of \$1,377 in connection with the FROG motion. (Joint Discovery Dispute Statement, p. 6:12-14; Declaration of Kimberly D. Jenkins, filed June 3, 2026, ¶ 12 ["My hourly billable rate is \$475.00. It took me 0.9 hours to prepare the Joint Discovery Dispute Statement Regarding Plaintiff Karina Torres' Response to Defendants' Form Interrogatories General, Set One, and this supporting declaration, for a total of \$427.5. I estimate it will take me an additional two hours to prepare the Notice of Motion, prepare for the hearing, and appear at the hearing, for a total of \$950.00".])

The requested sanctions are reasonable and GRANTED.

B. Special Interrogatories

Defendants

also move to compel further responses to SROGs, Nos. 19, 21, 27, and 56.

The Court finds it proper to deny that request for two reasons.

First, Defendants have not disputed Plaintiff's counsel's testimony that Defendants refused to meet and confer as required by the Court's rules. (See Declaration of Jessica C. Covington, filed on June 9, 2026, ¶ 7; Exh. 5 (Email dated May 28, 2026), p. 1 ["Judge Long expressly notes in his department rules that a moving party is required to meet and confer via telephone or video conference prior to initiating joint statement procedures. With regard to Special Interrogatory Nos. 19, 21, 27, and 56, that did not happen"]; Memorandum filed July 9, 2026, p. 2:12-14 ["With regard to Special Interrogatory Nos. 19, 21, 27, and 56 the parties did not meet and confer, although [Plaintiff's] counsel was willing to schedule a time to do so"].)

Second, Plaintiff already served proper responses to the SROGs as explained below.

SROG No. 19: "State all FACTS RELATED TO YOUR contention

that 'Defendant Arteaga regularly made inappropriate sexual comments and innuendos with the women in the offices of the restaurant' as alleged in Paragraph 17 of YOUR COMPLAINT."

Plaintiff responded in part: "Subject to and without waiving said objections, responding party responds as follows: In the kitchen, Arteaga made crude sexual innuendos in Spanish about women's body parts, creating an uncomfortable environment specifically for Spanish speaking employees like Responding Party, Vanessa Ramirez, and Yessenia Chula. The inappropriate jokes and comments became so excessive that the cooks, Alonzo and Luiz, would tell Arteaga to be quiet because the women servers were around and within earshot of his crude sexual remarks."

The Court finds that response was sufficient. Defendants contend that Plaintiff was required to provide the words and/or phrases Defendant Arteaga used. However, as Plaintiff argues, the interrogatory did not ask for that specific information. To the extent Defendants wanted specific statements, they should have requested that information. In addition, the fact that Defendants disagree with Plaintiff's reasons for her contentions does not mean that Plaintiff's responses were insufficient. (See *Swift v. Superior Court* (2009) 172 Cal.App.4th 878, 884 ["a motion to compel discovery responses to interrogatories and requests for admission does not require a similar evaluation of evidence that relates directly to the merits of the case. Motions to compel responses (or for a protective order) instead involve only the resolution of issues related to the propriety and adequacy of the discovery requests and responses and the parties' conduct in the discovery process. (See, e.g., § 2030.300 [listing grounds for compelling further responses to interrogatories such as 'evasive or incomplete' answers and meritless or overly general objections]; § 2030.090 [listing grounds for a protective order, including 'unwarranted annoyance' and 'undue burden and expense']").])

Therefore, the request to compel further responses to SROG No. 19 is DENIED.

SROG No. 21: "State all FACTS RELATED TO YOUR contention that 'Defendant Arteaga also frequently had conversations with male cooks, referring to sex' as alleged in Paragraph 17 of YOUR COMPLAINT."

Plaintiff responded in part: "Subject to and without waiving said objections, responding party responds as follows: In the kitchen,

Arteaga made crude sexual innuendos in Spanish about women's body parts, creating an uncomfortable environment specifically for Spanish speaking employees like Responding Party, Vanessa Ramirez, and Yessenia Chula. The inappropriate jokes and comments became so excessive that the cooks, Alonzo and Luiz, would tell Arteaga to be quiet because the women servers were around and within earshot of his crude sexual remarks."

Defendants

argue that Plaintiff was required to provide specific examples of conversations referring to sex. However, like No. 19, SROG No. 21 did not request that specific information.

Therefore, the request to compel further responses to SROG No. 21 is DENIED.

SROG No. 27: "State all FACTS RELATED TO YOUR contention that '[YOU] w[ere] also repeatedly pressured by Black Bear Diner management to sell alcohol to customers[]' as alleged in Paragraph 18 of YOUR COMPLAINT."

Plaintiff responded in part: "Subject to and without waiving said objections, responding party responds as follows: Arteaga occasionally promoted internal store contests to pressure servers to increase alcohol sales. On March 27, 2024, Arteaga announced a contest to sell mimosas and reprimanded Responding Party for her low alcohol sales. When Responding Party stated she could sell more alcohol if she was scheduled more hours, Defendant Arteaga responded in Spanish, 'callate cabrona,' and kicked Responding Party on her buttocks. Responding Party immediately contacted Trish Phillips to report Defendant Arteaga's offensive touching."

Defendants again argue that Plaintiff was required to explain how she was pressured to sell alcohol. However, the interrogatory, like the others, asked Plaintiff to state, in general, all facts to support her contention. It did not request specific information.

Therefore, the request to compel further responses to SROG No. 27 is DENIED.

Lastly,

SROG No. 56: "Describe the pain YOU contend YOU have suffered as a result of Defendants' alleged conduct."

Plaintiff responded: "Subject to and without waiving said objections, responding party responds as follows: Responding Party experienced significant emotional distress due to Defendants' conduct." Defendants again argue Plaintiff should have been more specific, but the interrogatory did not ask for a specific motion.

The request to compel further response to SROG No. 56 is DENIED.

For the reasons set forth above, the Court DENIES the motion to compel further responses. Plaintiff's request for sanctions is also denied because she has not argued or shown that the motion was brought without substantial justification as to all SROGs.

C. Requests for Production of Documents

Defendants

argue: "Although Plaintiff agreed to supplement Request for Production of Documents Nos. 1, 5, 7, 11, 12, 13, 14, 22, 100, 104, and 106; Nos. 2, 3, 4, 6, 8, 9, 10, 15, 16, 17, 18, 19, 20, 21, 23, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 58, 59, 65, 66, 67, 68, 69, 70, 72, 73, 75, 76, 77, 78, 82, 93, 95, 96, 102, 103, and 105 to include the phrase 'all documents that are responsive to this request'; No. 64 without limitation on the scope; No. 79; No. 83 limited to five years prior to 2023 and to records related to mental health care; and No. 94 (see *id.* at ¶¶ 6-7, Ex. 2.), Plaintiff has not provided a date by which she will provide supplemental responses. Accordingly, Defendants reserve the right to bring a motion to compel further responses regarding those requests." (RFP Joint Discovery Dispute Statement, pp. 2:26-3:5.)

However,

it is unclear what, if any, RFPs remain at issue. Plaintiff's counsel testifies that Plaintiff served confidential documents on May 29, 2026.

(Declaration of Jessica C. Covington, filed on June 9, 2026, ¶ 9.).

Defendants have not disputed that fact or indicated Plaintiff's supplemental responses to the RFPs were insufficient.

Therefore,
the motion to compel further responses to the RFPs is DENIED. Plaintiff's request for sanctions is also denied because she has not argued or shown that the RFP motion was brought without substantial justification as to all RFPs.

CONCLUSION

The
motions to compel further responses to Special Interrogatories (Set One) and Request for Production of Documents (Set One) are DENIED in their entirety.

The
motion to compel further response to Form Interrogatories (Set One) is GRANTED as to Form Interrogatories (Set One), Nos. 202.2, 203.1, 210.4, 8.4, and 10.1, only. Defendant is ordered to provide further code-compliant responses within 30 days.
The request for sanctions for that motion is also GRANTED. Defendant is ordered to pay Plaintiff sanctions of \$1,377 within 30 days.

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 16th day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court